

been held that a debtor's estate is assets, even in the hands of the lord taking by escheat (*i*).

12. 13 & 14 Vict. c. 60. — The law relating to the forfeiture and escheat of trust estates, except so far as it illustrates general principles, has now, by the interference of the Legislature, become of little importance; for by 13 & 14 Vict. c. 60, it is enacted in effect, by sect. 15, that in case of *failure of heirs of a trustee*, the Court of Chancery shall have power, upon summary application, to transfer the legal estate (*j*); * and by sect. 46, the trust property [*250] shall not escheat or be forfeited by reason of the *attainder* or *conviction for any offence of the trustee*; [and by 44 & 45 Vict. c. 41, s. 30, in the case of the death of a trustee after the 31st December, 1881, the legal estate in realty devolves upon the legal personal representative of the trustee, and may be disposed of and dealt with by him as if it were a chattel real.]

13. **Outlawry of the trustee.** — If a trustee be *outlawed* for *treason* or *felony*, the outlawry amounts to conviction (*a*), and the ordinary consequences of forfeiture or escheat (*b*) are averted by the above act. But an outlawry on an indictment for a *misdeemeanour* or in a *personal action* (*c*) is not equivalent to a conviction of the offence, but merely of a contempt of Court (*d*), punishable with forfeiture of the life rent of the outlaw's lands, and of his chattels, real and personal, absolutely, and in this case, therefore, the statute does not apply.

14. **A disseisor not bound by the trust.** — A *disseisor* is not an assign of the trustee either in the *per* or *post*, for he does not claim through or under the trustee, but holds by a wrongful title of his own, and adversely to the trust.¹ The first

(i) *Evans v. Brown*, 5 Beav. 116; and see *Viscount Downe v. Morris*, 3 Hare, 394.

(j) See *Re Martinez' Trust*, 22 L. T. N. S. 403; and *post*, Appendix, No. 2.

(a) Co. Lit. 390 b.; *Holloway's*

case, 3 Mod. 42; *King v. Ayloff*, Ib. 72.

(b) See pp. 27, 28, *suprà*.

[(c) Outlawry in civil actions is now abolished. See 42 & 43 Vict. c. 59.]

(d) *Rex v. Tippin*, Salk. 494.

¹ A cestui que trust cannot compel a disseisor to hold subject to the same trust, as the trustee; his only remedy is against the trustee, who may, if necessary, be removed.